

NIMBLE STATION

Terms of Service and Privacy Policy

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IMPORTANT: These Terms include automatic-renewal and property-lien disclosures, an agreement to individual arbitration, and a class-action waiver. Section 19 explains how to opt out of arbitration within 30 days.

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PART I — TERMS OF SERVICE

1. Agreement to these Terms

These Terms of Service ("Terms") are a binding contract between you and Nimble Station, LLC ("Nimble Station," "we," "us," or "our"). They govern the Nimble Station mobile application, website, connected lockers, kiosks, customer support, marketplace, transfer, and storage services (together, the "Services"). You accept these Terms by taking the affirmative acceptance step we present, such as tapping **I Accept**. We present the Terms before account creation is completed, keep a record of the version and time accepted, and make the current version available in the app and, when posted, on our website. These Terms also include the Privacy Policy in Part II and the Item Rules in Appendix A. If you do not agree, do not use the Services. **These Terms contain an agreement to individual arbitration and a class-action waiver in Section 19. You may opt out within 30 days as explained there.**

2. Services overview and Nimble Station's role

The Services may let eligible users list or transfer personal property, deposit or retrieve items through a connected locker, and enroll in a fixed-term or recurring Storage Plan. Some lockers are at locations operated by property owners or other partners ("Location Partners") that assist with access, safety, or site operations.

Nimble Station provides technology, controlled access, lockers, records, and support. Unless a listing expressly identifies Nimble Station as the seller, we are not the buyer, seller, owner, importer, manufacturer, authenticator, appraiser, escrow agent, payment agent, common carrier, or agent of either user. We are not a party to a sale or transfer between users.

Buyers and sellers arrange and make payment directly to one another using a lawful method they both accept. Nimble Station does not authorize, capture, hold, escrow, disburse, reverse, or refund an item's purchase price and does not offer escrow, buyer protection, or purchase protection. We charge separately for use of our Services as described in Section 6.

When we control physical access to an item, we use reasonable care appropriate to the selected service. Deposit does not transfer ownership to us and, except where a Storage Plan or mandatory law provides otherwise, does not make us a warehouseman, common carrier, or insurer.

3. Eligibility, accounts, and security

The Services are not offered to children under 13. If we learn that an account was created for a child under 13, we will close it and delete associated information except where retention is legally required.

If you are 18 or older, or otherwise a legal adult where you live, you may hold an account on your own authority. A person aged 13 through 17 may use the Services only as a permitted user on an account held by a parent or legal guardian. The adult must provide their own contact information, affirmatively consent, confirm the account through the method we provide, and maintain a payment method in their own name. The adult is the account holder and contracting party, is responsible for activity and charges on the account, and must supervise the minor's use.

A parent or guardian may withdraw consent by contacting us. We may allow a reasonable wind-down period, normally 14 days, to retrieve property, resolve an open transaction, end a Storage Plan, and pay amounts owed. Access during that period may be limited to those purposes. We may suspend or close an account if consent cannot be verified or is withdrawn.

You must have legal capacity to enter this agreement, provide accurate information, keep it current, protect passwords and pickup credentials, and promptly report suspected compromise. You are responsible for activity on your account. You may hold one personal account and separate accounts for organizations you are authorized to bind. Accounts may not be used to evade a suspension, limit, or amount owed.

We may verify email, telephone, mailing address, payment method, sanctions status, and fraud or risk signals. If law requires additional verification, including verification of a high-volume seller, we will explain what is needed before collecting it. We may refuse, limit, or suspend access if verification fails, risk is elevated, or law requires it. The Services are offered in the United States only.

4. Lockers, Location Partners, and access credentials

Use only the assigned locker, during the access window shown in the app, and close it securely. Before leaving, confirm the compartment is empty or contains only the expected item. Do not force a door, enter a restricted area, leave property outside a locker, or share a password or access credential except through a feature we provide.

Anyone possessing a valid pickup credential may be treated as authorized to open the assigned compartment. You are responsible for sending a credential only to the intended recipient and for promptly reporting loss or compromise. We may disable or replace a credential when reasonably necessary for security.

Location Partners are not parties to transactions between users. Site-specific services that a Location Partner offers outside the Nimble Station Services are governed by that partner's terms. Do not pay a Location Partner for a Nimble Station charge unless the app expressly directs you to do so.

Lockers or locations may be unavailable because of maintenance, connectivity, weather, safety, property restrictions, legal process, or events beyond reasonable control. We may move an item to another secure location when reasonably necessary and will notify you where practicable. Contact support instead of attempting self-help. Access logs, sensor events, photographs, and security video may be used as described in Part II.

5. Marketplace sales and peer transfers

Seller responsibilities

A seller must own the item or have authority to sell or transfer it free of undisclosed claims; provide an accurate description and current photographs; disclose material defects, alterations, missing parts, authenticity concerns, and safety recalls; agree payment terms directly with the buyer; deposit the exact item in the assigned locker, properly packaged, by the displayed deadline; and respond reasonably to questions, claims, and return arrangements.

Buyer responsibilities

A buyer must review the listing and compatibility information; agree payment terms with and pay the seller directly; retrieve the item within the displayed window; inspect it promptly; secure the locker; and preserve packaging, photographs, communications, and other evidence if there is a problem. A buyer may not alter, use, substitute, resell, or dispose of an item and then claim it arrived that way.

Transaction lifecycle

Before deposit, an item remains with the seller. Deposit is not authentication, acceptance, or a finding that the listing is accurate. Risk of loss passes to the buyer when the assigned compartment first opens for authorized pickup, except for loss caused by Nimble Station before that moment. Ownership passes as buyer and seller agree, or otherwise when the buyer accepts the item or the displayed inspection period expires without a timely claim, subject to mandatory law.

The transaction screen controls the deposit, pickup, inspection, cancellation, and claim deadlines for that transaction. Before deposit, either user may cancel unless the screen says otherwise. After deposit, cancellation may require approval and the responsible user may owe disclosed handling, return, or storage costs. After pickup, a complaint is handled as a claim or return rather than a cancellation.

If an item is materially different from its listing, missing, damaged, counterfeit, recalled, stolen, unsafe, or prohibited, submit a claim through the app by the displayed deadline and provide reasonably requested evidence. A material difference is one that significantly affects value, function, authenticity, safety, or ordinary use; disclosed wear, minor variation, or buyer's remorse ordinarily is not material.

We may review records, request evidence, facilitate communication or a return deposit, waive or refund our own fees, require removal, restrict an account, or report suspected crime. Our decisions are service-administration decisions, not judicial findings. We cannot refund or order repayment of money paid directly between users. Nothing limits a non-waivable right against another user or under consumer law.

High-volume sellers must provide information required by the INFORM Consumers Act or similar law. We may verify and disclose required information, protect it as required, and suspend a seller who does not comply.

6. Fees, direct payments, taxes, and recurring charges

Fees for platform use, lockers, storage, extensions, handling, damage, or failure to remove an item are shown before they are incurred or are described in an accepted Storage Plan. You authorize Nimble Station and its disclosed payment processor, currently Stripe, to charge the payment method on file for those amounts. Full card numbers are handled by the processor and are not stored by Nimble Station.

Payment of an item's purchase price is solely between buyer and seller. Nimble Station is not responsible for a failed, reversed, disputed, or fraudulent user-to-user payment. Do not make inconsistent statements to us and a bank or payment service. We may provide a financial institution with records concerning a disputed Nimble Station fee.

You are responsible for taxes arising from your transaction with another user. We collect or report taxes only where law requires us to do so.

Refunds of Nimble Station fees are considered under the terms shown at checkout and applicable law. Approved refunds return to the original payment method. Refunds of an item's purchase price are solely between buyer and seller.

Automatic renewal. If you select a recurring Storage Plan or other recurring Service, the enrollment screen will clearly state the recurring charge, billing frequency, term, minimum commitment, how and when to cancel, and whether the amount may change. By enrolling, you authorize recurring charges until cancellation. We provide a record of the terms after enrollment.

You may cancel through the same medium you used to enroll (in the app if you enrolled in the app) using a simple in-app mechanism, or through support. Cancellation takes effect as stated in the Plan, stops future renewals, and does not erase charges already incurred.

If the amount or term will change, we will give reasonable advance notice by email or in-app message. Where law requires a new affirmative consent, or a right to cancel without additional charge after a price change, we will provide it. If a renewal period is longer than one year, we will send any reminder required by law.

7. Storage Plans

This Section applies only when you accept a recurring or fixed-term Storage Plan. The Plan identifies the space, location, start date, billing period, price, fees, included access, any minimum term, declared-value limit, cancellation rule, and

state-specific notices. If law requires a separate rental agreement or location supplement, that agreement is part of the Plan and controls the subject it addresses.

Keep contact and payment information current. Use only the assigned space, keep property entirely inside it, follow access and safety rules, and remove all property when the Plan ends. A locker may not be used for living, sleeping, working, or conducting on-site business.

Storage is at your risk except to the extent a loss is caused by Nimble Station and liability cannot lawfully be disclaimed. Nimble Station is not an insurer. Maintain insurance appropriate for your property. Do not store property worth more than the declared-value limit shown in your Plan without written approval. Our responsibility for covered physical loss is limited as described in Section 17 and the accepted Plan.

Your Plan may renew automatically and your property may be sold if you do not pay. Charges continue until the Plan ends, all property is removed, the space is surrendered, and access is closed. If you default, we may deny access where law allows and may enforce a lien, sell property, or use another remedy only under the applicable rental agreement and the law where the locker is located. You will receive every notice and opportunity to cure or redeem that law requires.

For a qualifying Virginia facility, the Virginia Self-Service Storage Act, Va. Code Title 55.1, Chapter 29, applies. For another state, the state supplement for that location applies. A statutory process and current law control over any summary in these Terms.

8. Item condition, loss, and claims

Package items to withstand ordinary locker handling and the conditions disclosed for the location. Photograph valuable items and their condition before deposit. We may require serial numbers, receipts, estimates, communications, packaging, or other reasonable evidence when investigating loss or damage.

Unless an accepted Plan expressly offers additional protection, Nimble Station does not provide insurance or a discretionary guarantee. Listing price and declared value are not proof of actual value. A claimant must take reasonable steps to prevent further loss and must disclose insurance or other compensation for the same loss; there may be no double recovery.

Claims must be submitted by the deadline displayed for the Service or, if none is displayed, within a reasonable time after discovery. We may inspect records and property, request cooperation, and report suspected theft or fraud. These procedures do not shorten a limitations period or remove a remedy that applicable law does not allow us to waive.

9. Prohibited and restricted items

Appendix A identifies prohibited items and restricted items allowed only when the displayed conditions are met. You are responsible for knowing what you deposit and for complying with law, location rules, size and weight limits, and packaging instructions.

If we reasonably believe an item is prohibited, unsafe, stolen, counterfeit, hazardous, leaking, spoiling, or infested, we may refuse or suspend access, isolate or inspect the item as law allows, contact authorities, and arrange lawful removal or disposal. You must reimburse reasonable inspection, cleaning, remediation, disposal, storage, emergency, and legal costs caused by your item, except to the extent caused by us or prohibited by law.

10. Software license and intellectual property

The Services, including software, interfaces, workflows, text, design, and Nimble Station names and logos, belong to Nimble Station or its licensors. Subject to these Terms, we grant you a limited, nonexclusive, revocable, nontransferable license to use the app and website for their intended purpose. No franchise or other commercial right is granted without a separate written agreement.

Except where law expressly permits it, you may not copy, modify, distribute, sell, sublicense, reverse engineer, scrape, data-mine, bypass access controls, or use automated means to access the Services without written permission. Open-source components remain governed by their applicable licenses.

Feedback you voluntarily provide may be used by us without restriction or payment, but this does not transfer ownership of your separately created content.

11. User content, reviews, reporting, and copyright

You retain ownership of listings, photographs, messages, reviews, and other content you submit. You grant Nimble Station a worldwide, nonexclusive, royalty-free license to host, copy, format, display, distribute, and use that content to operate, secure,

improve, and promote the Services and investigate disputes, for as long as reasonably necessary. You confirm that you have the necessary rights and that the content is accurate and lawful.

Reviews must reflect genuine experience and disclose any incentive. We may filter, restrict, or remove content that is fraudulent, abusive, unlawful, threatening, irrelevant, invasive of privacy, or otherwise violates these Terms, but will not remove a review merely because it is unfavorable.

The app provides ways to report objectionable content or abusive conduct and to block another user. **Nimble Station aims to review good-faith reports within 24 hours**, subject to volume, safety, and legal constraints, and may remove content or restrict users. Contact admin@nimblestation.com if the in-app tool is unavailable.

For a copyright complaint, send legal@nimblestation.com a signed notice identifying the copyrighted work, the challenged material and its location, your contact information, a good-faith statement that use is unauthorized, and a statement under penalty of perjury that the notice is accurate and you are authorized to act. We process notices consistent with 17 U.S.C. § 512, may remove material, notify the submitter, process a valid counter-notice, and close repeat-infringer accounts. Until a designated agent is separately registered, legal@nimblestation.com is the copyright notice address.

12. Electronic communications and third-party services

You agree that agreements, disclosures, notices, receipts, and other communications may be delivered by in-app notice, email, text message, or another lawful electronic method and satisfy a requirement that they be in writing. Keep a working email address and mobile number on file. Service, security, transaction, default, and legally required messages are part of the Services. Marketing messages are optional; use the unsubscribe link or reply STOP. Message and data rates may apply. Calls may be recorded where lawful and after required notice.

Third-party websites, payment methods, maps, or tools have their own terms and privacy practices. Nimble Station is not responsible for a third-party service that it does not control. You must comply with applicable third-party terms when using the Services.

13. Prohibited conduct

You may not use the Services to violate law or another person's rights; move or store stolen goods; harass, threaten, discriminate, defraud, or impersonate; create sham accounts or transactions; manipulate listings, reviews, evidence, or fees; misuse credentials; interfere with another user's locker; introduce malicious code; disrupt systems; evade a suspension or amount owed; or cause injury or property damage. Attempting or helping another person to do a prohibited act is also prohibited.

14. Suspension, termination, and account deletion

You may stop using the Services at any time and may initiate deletion of your account in the app. A readily available web or support path may also be provided. An open transaction, active Storage Plan, property awaiting retrieval, unpaid amount, investigation, legal hold, or record-retention duty may delay completion, but not longer than reasonably necessary.

We may restrict, suspend, or close an account for breach, nonpayment, fraud, safety or security risk, repeated disputes, unavailable dependencies, service discontinuation, or legal requirements. We generally provide notice and a reasonable opportunity to cure where practicable, but may act immediately for a serious breach or urgent risk. You may contact support to contest a decision and provide relevant information.

On termination, the license in Section 10 ends and accrued obligations remain. Provisions that by nature should survive do survive, including payment, ownership, unclaimed-property, privacy and retention, indemnity, limitations, and dispute provisions.

15. Unclaimed items and storage default

An item is unclaimed if the responsible user does not retrieve, return, redirect, or pay for it after the periods displayed in the app. We will send notices to available account contacts and may charge disclosed storage or handling fees.

An item left from a marketplace sale or peer transfer is not automatically Storage Plan lien property. We hold it for its owner and, after required notice, may return it, move it to storage, deliver it to authorities, or dispose of property that is worthless, spoiling, or unsafe, only as applicable law allows. We do not claim a self-storage lien over a transaction item merely to recover our fees.

Property held under a Storage Plan is handled under the accepted rental agreement, applicable state supplement, and governing lien and unclaimed-property law. Lawful charges and sale expenses may be deducted from proceeds; any surplus is handled as law requires.

16. Disclaimers

To the maximum extent permitted by law, the Services are provided "as is" and "as available." Nimble Station disclaims implied warranties of merchantability, fitness for a particular purpose, title, and non-infringement. We do not warrant uninterrupted access, error-free software, user identity, payment by another user, item authenticity or condition, listing accuracy, or completion of a transaction.

These disclaimers do not limit an express written promise or a right that cannot lawfully be waived. Mandatory consumer protections, including non-waivable rights under the law of the state where you live, remain fully effective.

17. Limitation of liability

To the maximum extent permitted by law, Nimble Station and its affiliates, personnel, agents, Location Partners, and providers will not be liable for indirect, incidental, special, exemplary, punitive, or consequential damages, or lost profits, revenue, data, goodwill, or opportunity, arising from the Services.

Except for a property-custody claim addressed below, our total liability for a claim will not exceed the greater of (a) fees you paid Nimble Station for the Service giving rise to the claim during the 12 months before the event or (b) \$100. For loss of or damage to property while in our physical custody, liability is limited to the lesser of actual value or the declared-value limit shown for the selected Service or Storage Plan. Do not deposit property above that limit without prior written approval. A higher approved value or separate written protection term controls only as stated in that writing.

These limits do not apply to liability that cannot lawfully be limited, including fraud, willful misconduct, gross negligence, or death or personal injury caused by negligence where applicable law prohibits limitation. They do not reduce non-waivable consumer remedies.

18. Indemnification

To the fullest extent permitted by law, you will defend, indemnify, and hold harmless Nimble Station and its affiliates, personnel, agents, Location Partners, and providers from a third-party claim, loss, penalty, and reasonable cost or legal fee arising from your item, content, conduct, breach of these Terms, violation of law or another person's rights, taxes you owe, injury or property damage you cause, or a dispute between you and another user arising from your act or omission.

This does not require indemnification for Nimble Station's own negligence, willful misconduct, or liability that cannot lawfully be shifted. We may control the defense, and you may not settle a claim in a way that imposes an obligation on us without written consent.

19. Disputes, arbitration, and class-action waiver

Please read this Section carefully. It affects your right to a jury trial and to participate in a class action.

Informal resolution. Before arbitration or court, the claimant must send an individual written notice to legal@nimblestation.com and Nimble Station, LLC, 1329 Alum Spring Road, Suite 102, Fredericksburg, Virginia 22401. Describe the account, facts, requested relief, and contact information. The parties will try in good faith to resolve the matter for 60 days, and applicable limitation periods are paused during that time.

Individual arbitration. If unresolved, a dispute arising from these Terms or the Services will be resolved by binding individual arbitration administered by the American Arbitration Association under its then-current Consumer Arbitration Rules. The Federal Arbitration Act governs this Section. The arbitrator may award the same individual relief a court could. Nimble Station will pay fees the applicable consumer rules require it to pay.

The arbitrator decides questions about interpretation, scope, applicability, enforceability, or formation of this arbitration agreement, except that a court decides enforceability of the class-action waiver and may enforce the exceptions below.

Exceptions. Either party may bring an individual claim in small-claims court if it qualifies; seek emergency injunctive relief; bring a claim concerning intellectual-property misuse; pursue a statutory lien or possession proceeding; or bring a claim that cannot lawfully be arbitrated. Public injunctive relief may be sought in court where law makes that right non-waivable.

No class proceedings. Claims may be brought only in an individual capacity, not as a class, consolidated, representative, coordinated, or private-attorney-general proceeding, to the fullest extent permitted by law. If this waiver is unenforceable for a

particular claim, that claim is severed and heard in court while the rest of this Section remains effective.

Similar claims. If 25 or more similar demands are filed against Nimble Station by or with coordination of the same counsel, the administrator's mass-arbitration rules may apply. Cases may proceed in fair batches or bellwether groups, but an outcome binds only parties to that case, limitation periods are paused while a filed claim waits, and no claimant must wait indefinitely. If a claim has not been assigned to an active batch within 240 days after filing, that claimant may elect individual arbitration or individual court litigation, and we will not object on the basis of this Section.

Opt out. You may opt out of this entire arbitration Section by sending a signed notice to legal@nimblestation.com within 30 days after first accepting these Terms. State your name, account email or phone, and clear decision to opt out. Opting out does not affect use of the Services and will not result in different treatment.

For a parent-held account, the adult agrees to this Section for themselves and, to the extent law allows, for a permitted minor user. A minor's claim that cannot lawfully be arbitrated is excluded.

20. Governing law and general terms

Virginia law governs these Terms without regard to conflict-of-laws rules, except that the Federal Arbitration Act governs Section 19 and mandatory consumer law where you live remains applicable. A dispute not subject to arbitration must be brought in a state or federal court serving Fredericksburg, Virginia, except a qualifying small-claims case may be brought where the applicable rules permit.

These Terms, Part II, an accepted Storage Plan, applicable state or location supplement, and transaction-specific screen are the entire agreement concerning the Services. A Storage Plan or supplement controls the subject it specifically addresses; the transaction screen controls transaction-specific timing and price; these Terms otherwise control; and mandatory law always controls.

These Terms do not create a partnership, joint venture, employment, or agency relationship. We may assign them in a merger, financing, reorganization, or sale of the business; you may not assign them without written consent. If a provision is unenforceable, it will be narrowed or severed to the minimum extent necessary. Failure to enforce is not a waiver. Headings are for convenience. Neither party is liable for failure caused by events beyond reasonable control.

We may update these Terms prospectively. We will post the new effective date and give reasonable advance notice of a material change by email or in-app notice, with renewed consent where law requires. If you do not accept a material change, stop using the Services and close your account after resolving open obligations.

21. App-store terms

If you download the app from Apple App Store or Google Play, these Terms are between you and Nimble Station, not the store operator. The operator is not responsible for the app, its content, maintenance, support, or claims, except as its own rules require.

For an Apple-distributed app: the license is limited to use on Apple-branded products you own or control as permitted by Apple's usage rules, including permitted Family Sharing or volume-purchasing access; Apple has no maintenance obligation; Nimble Station is responsible for product, legal, consumer, and intellectual-property claims concerning the app; Apple may refund any purchase price paid for the app if it fails to conform to an applicable warranty, with no other warranty obligation to the maximum extent permitted; you confirm compliance with U.S. sanctions and embargo rules; and Apple and its subsidiaries are third-party beneficiaries entitled to enforce this Section.

For a Google Play-distributed app: these Terms are between you and Nimble Station, not Google. Google has no obligation to provide maintenance or support and is not responsible for claims relating to the app except as Google's own terms require.

You must comply with applicable store and third-party terms. Questions or claims about the app should be sent to Nimble Station.

22. Contact and notices

Nimble Station, LLC, 1329 Alum Spring Road, Suite 102, Fredericksburg, Virginia 22401. Support: admin@nimblestation.com. Legal notices: legal@nimblestation.com. Privacy requests: privacy@nimblestation.com.

We send notices to the email address on your account or through the app. A notice from us is effective when delivered. A notice to us is effective when received.

Notice to California users. Under California Civil Code § 1789.3, California users of the Services may contact the Complaint Assistance Unit of the Division of Consumer Services, California Department of Consumer Affairs, 1625 North Market Blvd., Suite N 112, Sacramento, CA 95834, or (800) 952-5210.

PART II — PRIVACY POLICY

1. Scope

This Privacy Policy explains how Nimble Station collects, uses, discloses, retains, and protects personal information through the Services. It applies to users, prospective users, transaction participants, Storage Plan holders, support contacts, website visitors, and people recorded near participating lockers where Nimble Station controls the processing.

This Policy is part of the Terms. A current copy is available in the app and by emailing privacy@nimblestation.com without needing a completed paid transaction. We will also post a standalone copy on our website when that page is live; until then, email is the public path. App Store privacy labels and Google Play Data Safety disclosures should describe the same current practices. If a summary differs from this Policy, this Policy controls, but we will correct the summary.

2. Personal information we collect

We collect only information reasonably needed for the purposes below:

- **Account and identifiers:** name, username, email, phone, mailing address, age confirmation or date of birth, profile photo, settings, and for a permitted minor, the account-holding adult's contact and consent record.
- **Listings and transactions:** listings, agreed prices, deposit and pickup records, messages, reviews, claims, returns, and dispute evidence.
- **Payments to Nimble Station:** billing address, processor token, fees, refunds, and chargeback records. Full card numbers are handled by our payment processor, currently Stripe, and are not stored by us.
- **Items and lockers:** descriptions, photographs or video you provide, condition notes, locker identifiers, access times, door logs, sensor and error events.
- **Device and network:** IP address, approximate region derived from IP, device identifiers, operating system, app version, crash, usage, and security logs.
- **Communications:** support requests, surveys, reports, and call recordings where lawful and after required notice.
- **Premises security:** camera images from participating locations where cameras are used and appropriate notice is posted.
- **Inferences:** fraud, risk, account-security, and reliability signals derived from the categories above.
- **Legally required seller verification:** for a seller covered by the INFORM Consumers Act or similar law, identification, tax, bank or payee, and contact information the law requires. We tell the seller before collection and limit use to compliance, safety, and fraud prevention.

We do not currently use face recognition or create biometric templates; collect precise GPS or Bluetooth-derived location from your device; sell personal information; or share it for cross-context behavioral advertising. We do not use advertising or attribution SDKs. If a new feature would collect precise location, biometrics, or another category of sensitive information, we will provide specific notice and obtain consent where required before collection.

3. Sources

We collect information from you; your device and browser; connected lockers and participating locations; other users involved in a transaction; payment, communications, security, analytics, and support providers; public sources; and authorities or business partners as law permits.

4. Why we use information

We use personal information to create and manage accounts; verify age and parental consent; provide listings, transfers, lockers, storage, returns, and support; charge and refund our fees; authenticate users; prevent fraud, theft, counterfeit items, abuse, and unsafe access; send service, security, transaction, default, legal, and optional marketing communications; operate, analyze, debug, and improve the Services; enforce agreements; resolve disputes; protect people, property, and rights; satisfy tax, sanctions, recordkeeping, legal-process, and other legal obligations; and establish or defend legal claims.

We may use aggregated or de-identified information for lawful purposes and do not attempt to re-identify it except to test de-identification safeguards or as law allows.

5. How we disclose information

We may disclose information to:

- service providers, including our payment processor (currently Stripe) and hosting, fraud-prevention, communications, analytics, support, and security vendors, under contractual limits;
- another transaction participant when reasonably needed to complete, document, return, or resolve the transaction;
- Location Partners for site access, operations, security, and incident response;
- authorities in response to valid legal process or when reasonably necessary to report suspected crime, address an emergency, or protect rights and safety;
- professional advisers, insurers, auditors, and financing sources subject to appropriate duties;
- a buyer, successor, or other participant in a merger, financing, reorganization, or sale, subject to appropriate protection;
- rights holders when reasonably necessary to investigate counterfeit or infringement reports and permitted by law;
- anyone you direct us to, and the public when you choose to publish a listing or review.

We may preserve records while awaiting legal process. Where permitted and where notice would not impede an investigation or create risk, we will try to notify an affected user.

6. Cookies, SDKs, device permissions, and communications choices

Our website and app may use cookies, local storage, and software development kits for essential operation, security, preferences, and first-party measurement. Browser settings may control cookies. Device settings control camera, photos, notifications, and any optional permission. Denying an optional permission may limit the feature that needs it but does not prevent use of unrelated features where a practical alternative exists.

You may unsubscribe from marketing email or reply STOP to marketing texts. Operational or legally required messages may continue while you have an account or open obligation.

7. Sale, targeted advertising, and universal opt-out signals

We do not sell personal information for money and do not share it for cross-context behavioral advertising or use it for targeted advertising as defined by state privacy laws. Because we do not engage in those practices, an opt-out is not presently necessary.

If those practices change, we will update this Policy before they begin, provide required notice and opt-out controls, and honor recognized universal opt-out mechanisms such as Global Privacy Control where applicable.

8. Retention and account deletion

We retain information only as long as reasonably necessary for the purposes described, considering the duration of the account or transaction; open property, Storage Plan, claim, dispute, or investigation; fraud and security needs; tax, accounting, payment-network, lien, and recordkeeping duties; applicable limitation periods; and legal holds.

When information is no longer needed, we delete it or de-identify it. Aggregated information that cannot reasonably identify a person may be retained. Backups may persist for a limited period until overwritten under normal schedules.

All users may initiate account deletion in the app and may use any deletion path published on our website or contact privacy@nimblestation.com. We delete associated content and personal information unless retention is reasonably necessary for an open matter, security or fraud prevention, legal compliance, or establishment or defense of a claim. We explain material retention that applies to a request and ask service providers to delete covered information where appropriate.

9. Your privacy rights

Depending on residence and the law's applicability, you may have rights to confirm whether we process your information; access it; correct inaccuracies; delete it; obtain a portable copy; opt out of targeted advertising, sale, or certain profiling; restrict or limit certain sensitive-data uses; and appeal a denied request. You will not receive discriminatory treatment for exercising a right.

Submit a request or appeal to privacy@nimblestation.com. We verify requests proportionately and respond within the time law allows. An authorized agent may act where permitted, subject to verification. If an appeal is denied, we provide any further complaint method the applicable law requires.

California residents may also contact the Complaint Assistance Unit of the Division of Consumer Services, California Department of Consumer Affairs, 1625 North Market Blvd., Suite N 112, Sacramento, CA 95834, or (800) 952-5210.

California residents may request, once per calendar year, information about personal information we disclosed to other businesses for their own direct marketing in the preceding calendar year (Civil Code § 1798.83, "Shine the Light"). We do not currently disclose personal information to other businesses for their own direct marketing. Email privacy@nimblestation.com to make that request.

10. Children and permitted minor users

The Services are not directed to children under 13, and we do not knowingly collect their personal information. Contact privacy@nimblestation.com if you believe a child under 13 provided information.

For a person aged 13 through 17 using a parent- or guardian-held account, we process the adult's contact information and consent record and information created through the permitted user's activity. The adult may review, correct, or request deletion of that information or withdraw consent. Withdrawal closes the account after the wind-down described in Part I.

11. Security and automated review

We use administrative, technical, and physical safeguards appropriate to the information, including access controls, authentication, encryption in transit, logging, and vendor management. No system is perfectly secure. Protect credentials and promptly report suspected compromise. If an incident occurs, we investigate and provide notice required by law.

Automated rules or models may flag fraud, account takeover, prohibited items, or unsafe activity and may lead to verification, review, or temporary restriction. We do not make a decision producing a legal or similarly significant effect solely by automated means without a route to human review where required. Contact support to contest a decision.

12. U.S. processing, changes, and contact

The Services are intended for the United States. Information may be processed in U.S. states where we and our providers operate. If future international processing requires an additional notice or transfer safeguard, we will provide it before that processing begins.

We may update this Policy prospectively. We post the effective date and give reasonable advance notice of a material change, with consent where law requires.

Privacy contact: Nimble Station, LLC, Attn: Privacy, 1329 Alum Spring Road, Suite 102, Fredericksburg, Virginia 22401. privacy@nimblestation.com.

APPENDIX A — ITEM RULES

A. Prohibited items

You may never list, deposit, transfer, or store:

- people, live animals, human remains, or bodily materials;
- illegal, stolen, counterfeit, infringing, recalled, or unlawfully imported property, or property used to facilitate crime;
- firearms, ammunition, explosives, fireworks, or a weapon prohibited by law or location rule;
- tobacco, nicotine, vaping products, alcohol, or other unsupported age-restricted goods;
- controlled substances, illegal drugs, drug paraphernalia, cannabis where prohibited, or unlawfully transferred prescription medicine;
- hazardous, toxic, radioactive, corrosive, flammable, pressurized, biohazardous, infectious, or environmentally regulated materials, including fuel;
- leaking, infested, moldy, or odor-producing items;
- child sexual abuse material, non-consensual intimate imagery, exploitative content, or obscene material prohibited by law;
- motor vehicles, watercraft, large machinery, or property exceeding posted size, weight, power, or ventilation limits; or

- anything prohibited by law, the applicable location, our insurer, or a payment provider whose rule applies to the Service.

B. Restricted items

The following are permitted only when the app expressly accepts the category and all displayed conditions are met:

- **Perishable goods and live plants:** packaged to prevent leakage, odor, spoilage, and contamination; accurately marked; lawful under agricultural rules; and retrieved within the displayed perishable window. Lockers are not refrigerated unless expressly stated.
- **Consumer chemicals, pesticides, batteries, and battery-powered devices:** lawful consumer quantities, in original or protective packaging, undamaged, not swollen, leaking, loose, or otherwise unsafe.
- **Jewelry, precious metals, collectibles, cash, negotiable instruments, gift cards, lottery tickets, cryptocurrency keys, and irreplaceable documents:** only if the category is expressly offered and within the declared-value limit.
- **Items requiring a license to possess or transfer:** only when the user holds the license, the transaction and location are lawful, and the item is not prohibited above.

We may refuse a restricted category at a location, impose reasonable handling conditions, or require removal. The prohibited list always controls over the restricted list.